IN THE SUPREME COURT OF THE STATE OF OREGON

State ex rel Representative Tina Kotek and Senator Peter Courtney, on behalf of the Oregon Legislative Assembly, Plaintiffs-Relators, v. Oregon Secretary of State Shemia Fagan, Defendant-Adverse Party.	Supreme Court No. S_____ MANDAMUS PROCEEDING

REPRESENTATIVE TINA KOTEK AND SENATOR PETER COURTNEY'S, ON BEHALF OF THE OREGON LEGISLATIVE ASSEMBLY, MEMORANDUM IN SUPPORT OF PETITION FOR A PREEMPTORY WRIT OF MANDAMUS, AND APPENDIX

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INTRODUCTION

Representative Tina Kotek and Senator Peter Courtney, in their capacities as Speaker of the Oregon House of Representatives and President of the Oregon State Senate, respectively, on behalf of the Oregon Legislative Assembly ("Relators"), petition this Court for a preemptory or alternative writ of mandamus enjoining Shemia Fagan, in her official capacity as Oregon Secretary of State, from reapportioning districts for the Oregon House of Representatives and Oregon State Senate until three calendar months after the United States Census Bureau releases the 2020 Census data needed to reapportion those legislative districts. Relators further request that this Court extend the deadline for the Legislative Assembly to reapportion legislative districts until three calendar months after the 2020 Census data is released and allow reapportionment to occur in an emergency legislative session.

In an ordinary reapportionment year, the Census Bureau provides data needed to reapportion legislative districts by April 1. Article IV, section 6 of the Oregon Constitution then gives the Legislative Assembly until July 1 (*i.e.*, three calendar months) to enact any reapportionment; if it "fails" to do so, the reapportionment duties pass to the Secretary of State. She must complete those duties by August 15, 2021.

This is not an ordinary reapportionment year. Instead of providing 2020 Census data by April 1, delays caused by (among other things) the COVID-19

pandemic will prevent the Census Bureau from providing it until sometime after July 1, 2021—and likely as late as September 30, 2021. The Legislative Assembly will therefore be unable to perform its constitutionally delegated reapportionment duties by the July 1, 2021, deadline, at which time the Legislative Assembly cedes its duties to the Secretary of State.

Thus, unless this Court (1) enjoins the Secretary of State from moving forward with apportionment and (2) extends the deadlines set forth in Article IV, section 6 (and allows reapportionment to occur in a special legislative session), reapportionment will either not be done at all or will be done using old Census data that will result in malapportioned legislative districts.[1] Neither result is constitutionally palatable.

ARGUMENT

A. Background

Article IV of the Oregon Constitution sets forth, among other things, the Legislative Assembly's powers and duties. Article IV, section 6(1) provides, "At the odd-numbered year regular session of the Legislative Assembly next following" a decennial Census, "the number of Senators and Representatives

[1] The Legislative Assembly recognizes that its own deadlines are not the only ones implicated by this delay. The Secretary of State and this Court have deadlines that rise and fall on what the Legislative Assembly does or does not do. Relators suggest that, consistent with the arguments herein, each branch retain the same amount of time as it currently has under Article IV, section 6 to conduct its respective duties—as measured from the date that the Census Bureau delivers the data.

shall be fixed by law and apportioned among legislative districts according to population." "[I]f the Legislative Assembly fails to enact any reapportionment by July 1[,]" then "[t]he Secretary of State shall make a reapportionment of the Senators and Representatives" and "[t]he reapportionment so made shall be filed with the Supreme Court by August 15[.]" Or Const, art IV, § 6(3).

Oregon voters added these constitutional requirements to Article IV, section 6 in 1952. At the time, the Legislative Assembly had not reapportioned legislative districts since 1910 to preserve the power of some populations at the expense of others. Thus, the purpose of the measure was to "requir[e] legislature following each federal census to reapportion legislative representatives" and, if the legislature "fails to enact[,]" the Secretary of State undertakes those duties. (Sec'y of State, State of Oregon, Official Voters' Pamphlet for the Regular General Election 81 (Nov 4, 1952), App 1.)

Since early 2020, the COVID-19 global pandemic and resulting public-health crisis has impacted nearly every aspect of daily life. The 2020 Census is no exception. Although federal law requires redistricting data from the 2020 Census to be released by April 1, 2021, 13 USC § 141(b), it will now be released as late as September 30, 2021:

> The U.S. Census Bureau announced today that it will deliver the Public Law 94-171 redistricting data to all states by Sept. 30, 2021. COVID-19-related delays and prioritizing the delivery of the apportionment results delayed the Census Bureau's original plan to deliver the redistricting data to the states by March 31, 2021.

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> The redistricting data includes counts of population by race, ethnicity (Hispanic or Latino origin), voting age, housing occupancy status, and group quarters population, all at the census block level. This is the information that states need to redraw or "redistrict" their legislative boundaries.

(https://www.census.gov/newsroom/press-releases/2021/statement-redistricting-data-timeline.html ("Census timeline") (last visited March 10, 2021).) Meanwhile, the Census Bureau has provided tools to the states that will "help them begin to design their redistricting systems. * * * This will enable states to redistrict promptly upon receipt of their 2020 Census tabulation data." (*Id.*[2])

Although, under these extraordinary circumstances, the Legislative Assembly cannot perform its constitutional reapportionment duties by July 1, 2021, it will not "fail" to do so; it is prevented from reapportioning districts due to events outside of its control. The Legislative Assembly fully intends to reapportion districts as required by the Oregon Constitution—but will lack the necessary Census data to do so until the July 1, 2021, deadline has passed. Also, due to the delay and strict limits on the number of days in which the Legislative Assembly may be in regular Session, reapportionment cannot happen during the 2021 regular legislative session.

[2]Oregon is just one of over two dozen states impacted by the delay. (*See* https://www.ncsl.org/research/redistricting/2020-census-delays-and-the-impact-on-redistricting-637261879.aspx (last visited March 10, 2021).)

B. This Court has original jurisdiction over this matter.

This Court has original jurisdiction pursuant to Article VII (amended), section 2, of the Oregon Constitution and ORS 34.120 to decide issues of major public importance that must be resolved promptly. *See, e.g.*, *State ex rel. Sajo v. Paulus*, 297 Or 646, 648, 688 P2d 367 (1984); *State ex rel. Kelly v. Plummer*, 97 Or 518, 525, 189 P 405 (1920). Relators seek relief in this Court rather than a lower court because this case involves precisely that type of issue: whether the Legislative Assembly can draw district lines that meet constitutional requirements in time for elections officials and candidates to conduct orderly elections in the new districts.[3]

For example, in *Sajo*, the plaintiffs brought a mandamus proceeding against the Secretary of State, asserting that improper procedures were used in the initiative process to verify signatures for ballot measures. 297 Or at 648. This Court "allowed the alternative writ in [*Sajo*] because of the importance and the novelty of the statutory and constitutional issues raised by the petition." *Id.* The Court added, "[W]e considered the issues in this case to be of sufficient public importance * * * to deserve this court's resolution for such guidance as one decision can give the responsible officials and the legislature." *Id.* at 649;

[3]By vesting this Court with original jurisdiction to review certain reapportionment issues (Or Const art IV, § 6), Oregon voters recognized the importance of this Court's review of those type of issues.

see also Kelly, 97 Or at 525 (exercising original jurisdiction because the issue "affects the interests of a great many people").

This Court therefore exercises discretionary mandamus jurisdiction when a case involves issues of major public importance that require speedy and final resolution. This is precisely that type of case.

C. This Court should exercise its original jurisdiction and provide the requested mandamus relief.

The Census Bureau's failure to provide redistricting data by federally prescribed deadlines creates constitutional turmoil that warrants this Court's exercise of original mandamus jurisdiction. Article I, section 2 of the United States Constitution requires a decennial Census. The decennial Census supports several constitutional purposes: it provides the data necessary to ensure that "the number of Senators and Representatives [is] apportioned among legislative districts according to population," as required by Article IV, section 6 of the Oregon Constitution, and it also ensures that each district meets the equal population standards of the Equal Protection Clause of the Fourteenth Amendment.[4] The decennial Census also provides data on race and ethnicity in all the census blocks in Oregon necessary to ensure compliance with the federal

[4]In *Reynolds v. Sims*, the U.S. Supreme Court held that the Equal Protection Clause requires substantially equal legislative districts: "We hold that, as a basic constitutional standard, the Equal Protection Clause requires that the seats in both houses of a bicameral state legislature must be apportioned on a population basis. Simply stated, an individual's right to vote for state legislators is unconstitutionally impaired when its weight is in a substantial fashion diluted when compared with votes of citizens living on other parts of the State." 377 US 533, 568 (1964).

Voting Rights Act. For example, voter data is necessary to perform a racially polarized voting analysis, which in turn is necessary to determine whether a voter in a legislative district may raise concerns under section 2 of the Voting Rights Act. *See Thornburg v. Gingles*, 478 US 30 (1986).

Because of the delayed Census data release, the Legislative Assembly is faced with two choices: (1) do nothing, which then takes away the Legislative Assembly's reapportionment duties and shifts them to the Secretary of State; or (2) perform its constitutional reapportionment duties using outdated Census data to meet the July 1, 2021, deadline set forth in Article IV, section 6.[5]

Neither option is constitutionally feasible. If the Legislative Assembly does nothing, reapportionment duties shift to the Secretary of State; but the Secretary of State is no more able to carry out those duties in the absence of 2020 Census data. And using outdated Census data would likely lead to malapportioned legislative districts, in turn creating two additional potential constitutional issues: violation of Article IV, section 6 itself (requiring districts to be apportioned "according to population"), as well as the Equal Protection Clause and the Voting Rights Act. *See Hovet v. Myers*, 260 Or 152, 489 P2d 684 (1971) (where strict compliance with Article IV, section 6 is impossible because compliance under the state Constitution would violate the federal Constitution,

[5] As described below, no alternate adequate (and current) data set exists that would allow the Legislative Assembly to move forward with apportionment in the absence of the Census Bureau data.

the state Constitution must yield). Enjoining the Secretary of State from exercising her authority to reapportion legislative districts until the Census Bureau delivers the data and allowing the Legislative Assembly the opportunity to reapportion after July 1 and outside of a regular session avoids those results and preserves the constitutional process voters approved in 1952.[6]

D. Other than a writ of mandamus, Relators have no "plain, speedy, and adequate remedy."

Relators have no other plain, speedy and adequate remedy. "Ordinarily, the court will not issue a writ of mandamus if there is a plain, speedy, and adequate remedy in the ordinary course of the law, such as an appeal." *State v. Burleson*, 342 Or 697, 701-02, 160 P3d 624 (2007) (citation omitted). But the remedy must "be equally convenient, beneficial, and effective." *State ex rel. Pierce v. Slusher*, 117 Or 498, 501, 244 P 540 (1926) (citation omitted). "An adequate remedy, therefore, is a remedy that is sufficient and as equally convenient and effective as mandamus." *State ex rel. Dewberry v. Kulongoski*, 346 Or 260, 274, 210 P3d 884 (2009). Finally, mandamus "may issue even where other remedies exist, if they are not sufficiently speedy to prevent material injury." *State ex rel. Ricco v. Biggs*, 198 Or 413, 425, 255 P2d 1055

[6]The California Supreme Court recently issued a writ of mandamus in similar circumstances. *Legislature v. Padilla*, 9 Cal 5th 867, 469 P3d 405 (2020). The Court there determined that it would issue a writ to extend statutory and constitutional deadlines because the pandemic made compliance with those deadlines impossible. *Id.* at 877-80.

(1953), *overruled on other grounds by State ex rel. Maizels v. Juba*, 254 Or 323, 460 P2d 850 (1969); *see also Dewberry*, 346 Or at 272 (same).

Here, there is no remedy as sufficient, convenient, and effective as mandamus. Although the Legislative Assembly could attempt to refer a constitutional amendment to Oregon voters in the May 18, 2021 election, doing so in that timeframe would require bypassing the process set forth in multiple statutes, *see, e.g.*, ORS 250.085, 250.125, 250.127, ORS 251.205, 251.215, 251.225, 251.230, and would be costly. It is also not certain that the voters would approve the amendment. Furthermore, this option would require the Legislative Assembly (operating during a pandemic) to divert effort and resources to preparing a proposed amendment.

Simply put, the amendment option is neither speedy nor certain. And if the voters did not approve the amendment, the Legislative Assembly would lose its constitutionally delegated right to reapportion districts for the Oregon House of Representatives and Oregon State Senate if the July 1, 2021, deadline is not extended. In other words, time is of the essence—and the Legislative Assembly does not have a "plain, speedy, and adequate remedy in the ordinary course of the law"—because a delay in providing the requested relief "would practically amount to a denial of justice." *Kelly*, 97 Or at 525. Action by this Court is critical to ensuring that the 2022 legislative elections are held in districts that satisfy the requirements of the state and federal Constitutions.

Finally, no alternate adequate data set currently exists. To be sure, Portland State University is home to the Population Research Center ("PRC"), which produces annual population "estimates" and population "forecasting"—and can provide expertise in "population estimates, analysis, and forecast on a fee basis." (https://www.pdx.edu/population-research/ (last visited on March 10, 2021).) Yet to Relators' knowledge, PSU has no current body of data that is comparable to the Census Bureau data; thus, it cannot be viewed as a certain and viable alternate to this mandamus. And to the extent that PSU could provide "estimates" or "forecasts" of Oregon's population, those estimates and forecasts fall well short of the Census Bureau's data collection, which attempts to visit every household and is therefore an actual count of people. The Census Bureau's data is thereby the best source of data that will allow the Legislative Assembly to reapportion in a manner that adheres to the federal Constitution and Voting Rights Act.

E. Because it is certain that 2020 Census data will not be released until after July 1, 2021, this issue is ripe for adjudication now.

Although the constitutional deadlines have not yet passed, this case is nonetheless ripe. As noted, there is no doubt that 2020 Census data will not be provided before July 1, 2021—and likely not before September 30, 2021. When an "official result clearly can be forecasted[,]" that official result is ripe for adjudication. *League of Oregon Cities v. State*, 334 Or 645, 663, 56 P3d 892 (2002) (finding issue ripe even though "the Secretary of State has not yet

completed canvassing the votes * * * and the Governor has not yet proclaimed that the measure has passed"). Here, the fact that the Legislative Assembly cannot perform its reapportionment duties using 2020 Census data can "clearly can be forecasted" because it is certain that the Census Bureau will not provide Census data until after July 1, 2021.

What is more, this Court has dispensed with traditional justiciability principles in cases involving matters of public interest. *Couey v. Atkins*, 357 Or 460, 520, 355 P3d 866 (2015) ("there is no basis for concluding that the court lacks judicial power to hear public actions or cases that involve matters of public interest that might otherwise have been considered nonjusticiable under prior case law"). Cases involving election matters constitute a "public action" or one involving a matter of "public interest." *Id.* at 521-22. Thus, the traditional framework of ripeness does not govern.

CONCLUSION

Relators request that this Court (1) exercise its original jurisdiction under Article VII (amended), section 2, of the Oregon Constitution and ORS 34.120; (2) issue a preemptory writ of mandamus enjoining the Secretary of State from reapportioning legislative districts until three calendar months after the Census Bureau releases the 2020 Census data; and (3) extend the Article IV, section 6 deadline for the Legislative Assembly to reapportion legislative districts until

three calendar months after the 2020 Census data is released and allow reapportionment to occur in an emergency legislative session.

Alternatively, if this Court does not immediately issue a preemptory writ, Relators request the Court to issue an alternative writ directing the Secretary of State to delay reapportioning legislative districts until three calendar months after the Census Bureau releases the 2020 Census data, extending the Article IV, section 6 deadline for the Legislative Assembly to reapportion districts until three calendar months after the 2020 Census data is released, and allowing reapportionment to occur in an emergency legislative session.

DATED this 10th day of March, 2021.

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